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ARTICLE I. IN GENERAL**Sec. 2-1. Policy statement.**

The City of Claremont has not nor shall it ever waive any of its inherent and statutory rights and responsibilities as a governmental unit to protect and promote the public health, welfare and safety of the community and its citizens, and to protect and preserve their rights and interests. It is the city's policy that it has always and will continue to take all actions within its power, as authorized by the State of New Hampshire, to protect the health and safety of its citizens and will enforce, to the fullest extent permitted, all laws and regulations over which it has jurisdiction on an equal basis, without exception.

(Amend. of 4-9-08)

Editor's note—At the city's request, this policy statement, adopted April 9, 2008, is hereby incorporated into this Code, and designated as § 2-1.

Secs. 2-2—2-25. Reserved.**ARTICLE II. BOARDS, COMMITTEES, COMMISSIONS*****DIVISION 1. GENERALLY****Sec. 2-26. Residency requirement.**

(a) All voting members of any board, committee or commission of the city shall be residents of the city at the time of such appointment and shall maintain primary residency in the city during their terms in office. Upon taking primary residency outside of the city, such board, committee or commission member[s]

***Charter references**—Commissions, § 34; personnel advisory board, § 53; oath of office, § 59.

Cross references—Library board of trustees, § 2-232; police commission, § 2-282; board of appeals for building regulations, § 5-41 et seq.; code review board, § 5-61 et seq.; fire board of appeals, § 6-7; housing board established, § 7-29 et seq.; licensing board, § 8-26 et seq.; board of examination of plumbers, § 8-143 et seq.; zoning board of adjustment, § 22-41 et seq.

shall tender his/her [their] resignation to the chairperson and such position[s] shall be deemed vacant until appointment of a successor member[s].

(b) Upon passage of this section, any voting member currently serving on any board, committee or commission of the city shall tender his/her resignation to the chairperson, and such position shall be deemed vacant until appointment of a successor member.

(Ord. No. 349, 4-14-93)

Sec. 2-27. Appointment to boards and committee, etc.

(a) *Advisory committees.* The city council and the city manager, acting independently, and the mayor, when authorized by the city council, shall have the authority to appoint any advisory committee they deem appropriate to advise the appointing authority.

(b) *Agencies authorized by state statute which authorizes city councils to prescribe the method of appointment.* All city agencies created under authority of a state statute, unless the statute directs otherwise, shall be appointed by the city council.

(c) *Agencies created by ordinance.* All city agencies created by ordinance, unless a state statute directs otherwise, shall be appointed by the city council.

(Amend. No. 6, §§ 2—4, 5-8-91)

Secs. 2-28—2-35. Reserved.

DIVISION 2. AIRPORT ADVISORY BOARD*

Sec. 2-36. Composition.

There is hereby created an airport advisory board, composed of:

- (1) The city manager;
 - (2) A member of the city council selected by the council;
 - (3) The airport fixed-base operator; and
 - (4) Four (4) persons appointed by the city council.
- (Ord. No. 199, § 1, 5-14-80; Amend. No. 6, § 5, 5-8-91)

Sec. 2-37. Terms of office.

The term of the city manager as a member of the airport advisory board shall correspond with his official tenure. The term of the city councilor shall be from year-to-year as selected by the city council. The term of the fixed-base operator shall be for such time as he may hold such status by contract with the city. The term of each appointed member shall be two (2) years.

(Ord. No. 199, § 2, 5-14-80)

Sec. 2-38. Duties.

The airport advisory board shall act as an advisory group to the manager and city council on any matter affecting the operation or development of the municipal airport.

(Ord. No. 199, § 3, 5-14-80)

Secs. 2-39—2-50. Reserved.

***Cross reference**—Municipal airport division, § 2-166.

State law reference—Municipal airports, RSA 423:10.

DIVISION 3. CONSERVATION COMMISSION*

Sec. 2-51. Established.

Under the provisions of RSA 36-A:1 et seq., a conservation commission, hereinafter referred to as commission, is established.

(Ord. No. 163, § 1, 9-8-76)

Sec. 2-52. Composition.

The conservation commission shall consist of seven (7) regular members and up to five (5) alternate members. One (1) member may also be a member of the planning board. The members shall be appointed by the city council. Alternate members may serve in the absence or disqualification of a regular member. On the first commission appointed, two (2) members shall serve terms of three (3) years, two (2) members shall serve terms of two (2) years and three (3) members shall serve terms of one (1) year. Any member of the commission, may, after public hearing is requested, be removed for cause, by the city council.

(Ord. No. 163, § 2, 9-8-76; Ord. No. 313, § 1, 10-11-89; Amend. No. 6, § 6, 5-8-91)

Sec. 2-53. Duties.

The conservation commission may prepare a program for conservation and open space utilization for the city which is based upon the research and evaluation of the natural resources within the city. The commission shall prepare, adopt, and as appropriate, review and amend, a conservation and open space plan for the city. This plan may include a natural resource inventory, which describes open areas, swamps and wetlands, and areas of unique natural value or ecological importance within the city. Such plan may make recommendations relative to the proper utilization and development of open space and related natural resources of the city. The commission shall inform itself of the ways and means by which its plans and programs may be achieved and shall advise

***Cross references**—Subdivisions, Ch. 17; zoning, Ch. 22; subdivision regulations, App. B.

State law reference—Conservation commission, RSA 36-A:1 et seq.

the city council, municipal agencies, private groups and interests, and the general public of the manner in which these plans and programs may be carried out.
(Ord. No. 163, § 3, 9-8-76)

Sec. 2-54. Powers.

The conservation commission may, subject to the approval of the city council, receive gifts of money and property, both real and personal in the name of the city. The commission may acquire, in the name of the city and subject to city council approval, by gift, purchase, grant, bequest, devise, lease or otherwise, the fee in such land or water rights, or any lesser interest, development right, easement, covenant, or other contractual right, including conveyances with conditions, limitations or reversions, as may be necessary to acquire, maintain, improve, protect, limit the future use of, or otherwise conserve and properly utilize open spaces and other land and water areas within the city. The commission shall manage such property in accordance with the declared purpose of this resolution.
(Ord. No. 163, § 4, 9-8-76)

Sec. 2-55. Conservation fund.

Any money received by the conservation commission shall be placed in the conservation fund and allowed to accumulate from year to year, and money may be expended by the conservation commission from such fund for purposes consistent with the stated purposes of this division. All receipts and expenditures by the commission shall be conducted in accordance with NH RSA 36-A:5. All Land Use Change Tax receipts by the City of Claremont shall be immediately transferred to the Conservation Fund.
(Ord. No. 163, § 5, 9-8-76; Ord. No. 611, § 1, 8-23-2023)

Sec. 2-56. Rules and procedures.

The conservation commission shall adopt rules to govern its proceedings and shall keep accurate records of its meetings and actions, and shall file annually a report of its activities to the city council.
(Ord. No. 163, § 6, 9-8-76)

Secs. 2-57—2-70. Reserved.

DIVISION 4. BOARD OF HEALTH*

Sec. 2-71. Members.

The board of health shall consist of the city health officer and four (4) additional members appointed by the city council. When new appointments are made by the city council, they shall be for terms not exceeding four (4) years and the terms shall be staggered so that one (1) term expires each year. The members appointed by the city council shall include at least one (1) member who is a physician and one (1) who is a veterinarian, both of which shall be licensed to practice in this state. All members appointed by the city council shall be residents of the city and shall serve without pay.

(Ord. No. 302, § 2, 1-11-89; Amend. No. 6, § 7, 5-8-91)

Sec. 2-72. Removal.

The members of the board of health appointed by the city manager may be removed by the city manager for good cause.

(Ord. No. 302, § 3, 1-11-89)

Sec. 2-73. Officers.

The board of health shall elect from its members a chairman and a secretary.

(Ord. No. 302, § 4, 1-11-89)

Sec. 2-74. Rules and regulations.

The city manager shall establish rules and regulations for the conduct of the business of the board of health. Before setting or amending rules and regulations, the city manager shall solicit

***Cross references**—Plumbing standards, § 5-141 et seq.; food service establishments, § 8-91 et seq.; nuisances, Ch. 11; solid waste, Ch. 14; utilities, Ch. 20.

State law reference—Health officer, RSA 49-A:24.

proposals from the board of health and obtain the city solicitor's opinion that the rules and regulations so established comply with the applicable law.
(Ord. No. 302, § 5, 1-11-89)

Sec. 2-75. Duties.

The city health officer shall attend all meetings of the board of health and render a report of his activities. He shall supply such information as the board of health may request. The board of health shall report to the city manager and the city council through the public health committee, all health problems which come to its attention and make recommendations for solution of those problems. It shall have no operational control over the activities of the city health officer or other city employees. It shall, on its own initiative or when requested, give advice to the city manager and city council on health matters.
(Ord. No. 302, § 6, 1-11-89)

Secs. 2-76—2-85. Reserved.

DIVISION 5. CLAREMONT DEVELOPMENT AUTHORITY*

Sec. 2-86. Establishment.

The Claremont Development Authority is established under the provisions of RSA 162-G, for the purposes described in RSA 162-G:2, and is granted all powers, duties, and responsibilities described in RSA 162-G, including RSA 162-G:15-a, except those powers and duties expressly reserved to the city council under RSA 162-G:8.
(Ord. No. 620, § 2, 2-28-2024)

Editor's note—Ord. No. 620, § 1, adopted February 28, 2024, renumbered the former §§ 2-86—2-89 as §§ 2-87—2-90 and enacted a new § 2-86 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

***Editor's note**—Ord. No. 620, § 1, adopted February 28, 2024, amended the title of Div. 5 to read as herein set out. The former Div. 5 title pertained to Industrial Development Authority.

Cross references—Buildings and building regulations, Ch. 5; licenses and business regulations, Ch. 8; zoning, Ch. 22.

State law references—State industrial development authority, RSA 162-A:1 et seq.; acquisition, development and disposal of industrial land and facilities, RSA 162-G:1 et seq.

Sec. 2-87. Governing board.

The Claremont Development Authority shall be governed by a board of directors having nine (9) members, all of whom shall reside within the boundaries of the city. Members shall be appointed by the city council. The term of each member shall be three (3) years, except that initial terms of members shall be staggered so that three (3) members are appointed each year. Each member shall serve without compensation. Five (5) directors present shall constitute a quorum of the board of directors to transact any business. No action of the board of directors shall be effective unless it is passed by two-thirds of the directors present and voting. The city manager shall serve as an ex officio nonvoting member of the board of directors. (Ord. No. 301, § 2, 1-11-89; Amend. No. 6, § 8, 5-8-91; Ord. No. 620, § 3, 2-28-2024)

Sec. 2-88. Removal.

Any director of the Claremont Development Authority may be removed by the city council for good cause. (Ord. No. 301, § 3, 1-11-89; Ord. No. 620, § 3, 2-28-2024)

Sec. 2-89. Officers; committees.

The board of directors of the Claremont Development Authority shall elect from its members a chairman, vice-chairman, and secretary. (Ord. No. 301, § 4, 1-11-89; Ord. No. 620, § 3, 2-28-2024)

Sec. 2-90. Rules and regulations.

The board of directors shall establish rules and regulations for the conduct of the business of the Claremont Development Authority, subject to the approval of the city council. (Ord. No. 301, § 5, 1-11-89; Ord. No. 620, § 3, 2-28-2024)

Sec. 2-91. Borrowing.

The Claremont Development Authority shall have the ability to issue bonds or obtain loans to pay project costs, as authorized by the city council; any such bonds or loans shall not be

considered obligations of the city or commit the city to make expenditures in excess of any appropriations made by the city council expressly for meeting the obligations incurred by the bonds or loans.

(Ord. No. 620, § 3, 2-28-2024)

Secs. 2-92—2-100. Reserved.

DIVISION 6. PERSONNEL ADVISORY BOARD*

Sec. 2-101. Creation; membership.

In accordance with section 53 of the Charter, there is hereby created a personnel advisory board of three (3) citizens holding no

***Cross references**—Administrative code, § 2-141 et seq.; police, Ch. 13; personnel classification and pay schedules, App. B.

other political office and appointed, one (1) member by the manager, one (1) by the council, the third by the two (2) appointees. Members are appointed for three-year terms. (Ord. No. 262, § 2.6, 1-11-89)

Sec. 2-102. Powers and duties.

It shall be the duty of the personnel advisory board to study the broad problems of personnel policy and administration, to advise the council concerning the personnel policies of the city and the manager regarding the administration of the merit plan and retirement system, and to hear appeals of any employee aggrieved as to the status or condition of his employment or retirement in accordance with the Charter and merit system rules and regulations. This board shall issue written reports containing findings of facts and recommendations to the manager upon such appeals but the board shall have no power to reinstate an employee unless it finds, after investigation, that disciplinary action was taken against the employee based on race, color, religion, sex, gender identity, national origin, ancestry, age, familial status, sexual orientation, handicap, disability, veteran status, or other protected classification. It shall perform such other duties and have such other powers as imposed or granted in the merit system rules and regulations.

(Ord. No. 262, § 2.6, 1-11-89; Ord. No. 569, § 1, 10-9-2019)

Charter reference—Merit plan, art. IV.

Secs. 2-103—2-115. Reserved.

DIVISION 7. PLANNING BOARD*

Sec. 2-116. Creation.

There is hereby created under the authority granted by RSA 673:1 et seq., a planning board for the city which shall be designated as the city planning board.

***Cross references**—Buildings and building regulations, Ch. 5; housing, Ch. 7; mobile homes, recreational vehicles and mobile home and recreational vehicle parks, Ch. 10; parks and recreation, Ch. 12; streets, sidewalks and other public places, Ch. 16; subdivisions, Ch. 17; planning board authorized to approve or disapprove subdivision plats, § 17-1; zoning, Ch. 22; site plan regulations, App. A; earth excavation regulations, App. D; subdivision regulations, App. E.

State law reference—Planning boards, RSA 673:1 et seq.

The regular membership of the city planning board shall be constituted pursuant to RSA 673:2, I-a, so that the planning board shall consist of the following nine (9) members:

- (1) The city manager, or with the approval of the local legislative body the city manager's designee, who shall be an ex officio member;
- (2) A member of the city council selected by the council, who shall be an ex officio member; and
- (3) Seven (7) persons appointed by the city council.

Pursuant to RSA 673:6, five (5) alternate members of the city planning board, including an alternate for the city council regular member, shall be appointed by the city council. An alternate appointed for the city council regular member shall also serve ex officio.

(Ord. No. 86, Art. 1, 9-13-61; Ord. No. 573, § 1, 5-13-2020)

Sec. 2-117. Additional powers and duties.

In addition to the powers and duties of the planning board in RSA 673:1 et seq., in accordance with RSA 155-E, the planning board is designated as the regulator for adopting regulations, issuing permits and enforcing permit requirements for excavation. In accordance with RSA 675:6, the planning board is hereby empowered to adopt and amend site plan review regulations.

(Ord. No. 267, § 2, 9-10-86; Ord. No. 270, § 3, 12-10-86)

Sec. 2-118. Staff.

The planning board may appoint such employees as it may deem necessary for its work, whose appointment, promotion, demotion and removal shall be subject to the same provisions of the merit system rules and regulations as govern corresponding civil employees of the city. It may also contract with city planners, engineers, architects and other consultants for such services as it may require.

(Ord. No. 86, § 4.1, 9-13-61)

Sec. 2-119. Finances.

The expenditures of the planning board, exclusive of gifts, shall be within the amounts appropriated for the purpose by the city council.

(Ord. No. 86, § 4.2, 9-13-61)

Sec. 2-120. Technical review committee.

(a) The technical review committee (TRC) is hereby established and authorized to assist and advise the planning board in reviewing, and in the case of minor site plans, approving, conditionally approving or disapproving, such minor site plans. The TRC shall be composed of technically qualified administrators appointed by the planning board. The TRC shall include the planning and development director and representatives from relevant departments, including public works, fire, police, code enforcement, planning or similar departments, or their designees. Members of the TRC are not required to be city residents.

(b) All provisions of RSA 676:4 and all provisions of the planning board's site plan regulations shall apply to the TRC.

(c) The TRC shall have the discretion to refer any application, which otherwise meets the site plan regulation definition of minor site plan, that it considers as having potential for significant impact or which contains multiple uses to the full planning board for review and action.

(d) The TRC shall provide a written report of the TRC's decisions to the planning board at its next regularly scheduled meeting. Decisions rendered by the TRC may be appealed to the full planning board, provided that a notice of appeal is filed within twenty (20) days of the TRC's decision.

(Ord. No. 532, § 1, 5-8-2013)

Secs. 2-121—2-124. Reserved.

DIVISION 8. RESERVED*

Secs. 2-125—2-130. Reserved.DIVISION 9. TRUSTEES OF TRUST FUNDS AND BOARD
OF CEMETERY TRUSTEES**Sec. 2-131. Creation; membership.**

Pursuant to RSA 31:22 and RSA 289:6, IV, there is created a Board of Trustees of the Trust Funds and a Board of Cemetery Trustees comprised of (3) three members, one (1) of whom shall be appointed by the mayor each year for a term of three (3) years. Appointment to the board of trustees for the trust fund shall mean concurrent appointment to the board of cemetery trustees. The mayor shall appoint an interim trustee to complete the unexpired term in the event of a vacancy for the position of trustee.

(Ord. No. 481, § 1, 3-14-07)

Sec. 2-132. Powers and duties.

It shall be the duty of the boards to accept, take and hold in trust all gifts, legacies and devises for any public purpose, including those for the care of cemeteries and burial lots when the terms of the gift, legacy or devise does not impose any liability upon the city beyond the amount of the gift, legacy or devise and the income thereof. The trustees shall invest, administer, expend, distribute and account for all funds held in trust and perform all other duties as may be required by state law.

(Ord. No. 481, § 1, 3-14-07)

Sec. 2-133. Establishment of funds.

The trustees shall establish, maintain and operate one (1) or more trust funds for the purpose of facilitating investments,

***Editor's note**—Ord. No. 597, § 1, adopted September 28, 2022, repealed Division 8, §§ 2-125—2-127, which pertained to board of assessors and derived from Ord. No. 565, § 2, adopted March 13, 2019; Ord. No. 580, § 1, adopted Oct. 28, 2020.

providing diversification and obtaining reasonable income. The trustees may establish a cemetery capital reserve fund from a portion of the sums received from the sale of burial lots for the purpose of maintenance and enlargement of public cemeteries within the city, from which expenditures are to be approved upon the request of the trustees by resolution of the city council. (Ord. No. 481, § 1, 3-14-07)

DIVISION 10. POLICE COMMISSION*

Sec. 2-134. Established.

A police commission, hereinafter referred to as commission, was established prior to the City's Charter by a special act of the New Hampshire Legislature, Chapter 342 of the Laws of 1947. This special act was amended by Chapter 275, Laws of 1963 and Chapter 382, Laws of 1973. The Legislature also amended certain provisions of the city's original Charter in 1971 regarding budgetary control of the police department (Ch. 274, Laws of 1971, amending Chapter 392, Laws of 1947); however, some of those changes were repealed in Chapter 382, Laws of 1973. The Legislature, once again, amended this special act by and through Chapter 32 of the Laws of 2021. Pursuant to section 69 of the City Charter, the commission continues to be governed by these special acts of the Legislature rather than the provisions of NH RSA 105-C.

(Ord. No. 570, § 3, 10-9-2019; Ord. No. 589, § 1, 8-11-2021)

Sec. 2-135. Composition.

(a) The commission shall consist of three (3) members appointed by the city council. Said commissioners shall have been residents of the city for at least five (5) years immediately preceding the date of their appointment. Not more than two (2) commissioners may be of the same political party. Commission-

***Editor's note**—Ord. No. 570, § 3, adopted Oct. 9, 2019, set out provisions intended for use as Div. 9, §§ 2-134—2-137. Inasmuch as there were provisions already designated as Div. 9, and to preserve the numbering style of and space for the inclusion of additional provisions to this Code; at the editor's discretion, these provisions have been included as Div. 10, §§ 2-134—2-137.

Cross reference—Boards, committees, commissions, § 2-26 et seq.

ers shall serve without compensation but may be reimbursed for necessary expenses incurred in the performance of their official duties as commissioners.

(b) The city manager shall serve as an ex-officio member. The ex-officio member's role is advisory, non-voting, takes no authority from the commissioners, and is complementary to the three (3) commissioner positions. The term "commissioner" in this division 10 shall not be construed to refer to or include the ex-officio member.

(c) The term of office of each commissioner shall be three (3) years and until their successor is appointed. Any vacancy on the commission shall be filled by the city council in the same manner for the balance of the unexpired term.

(d) The city manager may remove any commissioner at any time for just cause and after due hearing, which cause shall be specified in the order of removal.
(Ord. No. 570, § 3, 10-9-2019; Ord. No. 589, § 2, 8-11-2021)

Sec. 2-136. Duties and powers.

(a) The commission shall appoint such police officers, constables and superior officers as in its judgment it deems necessary, within the budget and salary ranges and/or salaries approved by the city council for the police department. The commission may, through the chief of police, submit recommendations to the city manager regarding budget proposals.

(b) The commission shall have authority to remove any officer, constable or superior officer at any time for just cause and after due hearing, which cause shall be specified in the order of removal; provided, however, that such authority shall be exercised in accordance with any applicable collective bargaining agreement, with the provisions of RSA Chapter 273-A, and the provisions of RSA 105:2-a.

(c) The commission may make and enforce rules and regulations for the police force; provided, however, that such authority shall be exercised in accordance with any applicable collective

bargaining agreement, with the provisions of RSA Chapter 273-A and the provisions of RSA 105:2-a. The commission may adopt written formal policies for the chief of police.
(Ord. No. 570, § 3, 10-9-2019)

Sec. 2-137. Rules and procedures.

The commission shall adopt rules to govern its proceedings and shall keep accurate records of its meetings and actions. The commission shall file annually a report of its activities to the city council.
(Ord. No. 570, § 3, 10-9-2019)

DIVISION 11. CLAREMONT ARTS, HISTORY AND
CULTURE RESOURCES PRESERVATION COMMISSION*

Sec. 2-138. Definition.

For the purpose of this ordinance, "Arts, History and Culture" encompasses a wide range of activities, including painting, sculpture, other fine and folk arts, crafts, popular culture, music, theater, dance, film, other performance arts, architecture, archeological resources, cemeteries, literature, history, community/cultural heritage, agriculture, and other elements consistent with the intent of this section. The City of Claremont endorses the proper recognition, use, and protection of resources, tangible or intangible, primarily man-made, that are valued for their historical, cultural, aesthetic, or community significance within their natural, built, or cultural contexts.
(Ord. No. 615, § 1, 10-25-2023)

Sec. 2-139. Purpose of the commission.

This commission is established by the Claremont City Council pursuant to NH RSA's 47:17 XV and 674:2, III (h). The geographic focus of the Arts, History, and Culture Commission's activities shall be Claremont, but when appropriate, the Arts,

***Editor's note**—Ord. No. 615, § 1, adopted October 25, 2023, set out provisions intended for use as §§ 2-141—2-145. For purposes of classification, and at the editor's discretion, these provisions have been included as §§ 2-138—2-140.2.

History, and Culture Commission may work to promote historic assets, arts, and culture in the Greater Claremont area, consistent with the intent of this section. The purpose of the Arts, History and Culture Commission (or "the commission") is to implement the Arts, History and Culture Resources Master Plan by:

- (1) Highlighting our heritage to inspire a sense of place and pride in the City of Claremont;
- (2) Identifying, strengthening, promoting, and marketing Claremont's historic and cultural assets, infrastructure, and artistic treasures;
- (3) Facilitating community involvement in the arts;
- (4) Recognizing the economic power of the arts, history, and culture in Claremont;
- (5) Invigorating Claremont with an emphasis on the city's unique blend of old-fashioned charm and progressive vision; and
- (6) Acting on the city's behalf on matters of arts, history, and culture.

(Ord. No. 615, § 1, 10-25-2023)

Sec. 2-140. Functions of the commission.

The Arts, History, and Culture Commission is not a regulatory body. It has no review authority, and there is no requirement for it to review or approve any proposed event, project, or installation. No artist, organization, or business is required to consult with or appear before the commission. However, artists, organizations, or businesses are encouraged to receive feedback on any proposed event, project, or installation before submission to the city. The roles and responsibilities of the Arts, History, and Culture Commission include the following, subject to establishing priorities and availability of time and resources:

- (1) Master Plan. In consultation with the Historic District Commission, the commission will implement the Arts, History, and Culture Resources sections of the Master Plan. Implementing this plan is the primary role of the commission.

- (2) Public displays. Promotion and organization of public art displays, historical displays, forums, fairs, murals, exhibitions, performances, and other events.
- (3) Developing resources. Development of resources to support local artists and cultural organizations.
- (4) Coordination with other organizations. Coordinating, as appropriate, with other governmental, nonprofit, social, and business organizations connected with the arts, cultural resources, our community heritage, land development, economic development, tourism, and historic preservation.
- (5) Promoting cooperation. Promoting dialogue and collaboration between arts and cultural organizations and coordinating activities and projects with these organizations. This includes organizations located in Claremont as well as those situated outside of the city.
- (6) Educating the public about historic, artistic, and cultural resources.
- (7) Marketing, promoting, and developing Claremont as an arts and cultural destination.
- (8) Providing advice and advocacy to agencies of local, state, and federal government regarding the identification, promotion, and preservation of historic, artistic, and cultural resources.
- (9) Encouraging local and regional businesses to support and engage in arts, history, and culture.
- (10) Fostering excellence in design in wide-ranging aspects of civic and community life in Claremont.
- (11) Encouraging the participation of diverse populations in Claremont in arts, history, and culture.
- (12) Periodically recommending to the planning board updates to the Historic Resources Master Plan.
- (13) Recommending to the city council amendments to this section.

- (14) Applying for and implementing grants and soliciting other funds, as appropriate.
 - (15) Developing a database, inventory, and directory of the Greater Claremont area's historical, artistic, and cultural resources.
 - (16) Create a catalog of, promote, and display the city's artistic, historic, and cultural assets. This includes but is not limited to paintings, books, historic memorabilia, antiques, furniture, collectibles, and any other item the commission considers a city asset.
 - (17) Annual Report. Preparation of an annual State of the City arts, history, and cultural report for the city council.
 - (18) Other activities. Undertaking any other appropriate action or activity necessary to carry out its mission.
- (Ord. No. 615, § 1, 10-25-2023)

Sec. 2-140.1. Structure of the commission.

(1) *Composition.* The Arts, History, and Culture Commission shall consist of seven (7) members, all of whom shall be residents of Claremont and shall be regular voting members. Membership of the commission shall consist of the following:

- a. Two members appointed by the council from an arts organization located in Claremont; Two (2) members appointed by the council from a cultural or historic organization located in Claremont.
- b. Three members appointed with significant interest or participation in the promotion and preservation of Claremont's arts, history, and cultural assets.

(2) *Qualifications.* All members shall be residents of the City of Claremont. In reviewing the qualifications of all candidates for the commission, the city council shall consider his/her demonstrated interest and experience in, and knowledge of, arts, history, crafts, and culture and his/her ability to administer this section consistent with the mission of the commission. To the extent that such persons are available, the council shall seek members with diverse backgrounds.

(3) *Appointments.* The Arts, History, and Culture Commission members shall be appointed pursuant to chapter 2, article II, division 1 of the City Charter for terms of three (3) years. Some initial appointments (and subsequent appointments, when necessary) shall be for less than three (3) years in order that the various terms be staggered.

(Ord. No. 615, § 1, 10-25-2023)

Sec. 2-140.2. Administration.

(1) *Meetings and activities.* The commission shall meet as needed, but it shall meet at a minimum twice each calendar year. It shall hold an annual meeting in February, or at such other time as determined by the commission, to review the prior year's activities and plan for the upcoming year.

(2) *Bylaws.* The commission shall adopt bylaws to govern its operation.

(3) *City and state law.* The commission shall be regulated by all applicable city and State laws.

(4) *Staffing and resources.* The City of Claremont will provide staffing and other support to the Arts, History, and Cultural Commission, as appropriate, subject to the availability of staff resources.

(5) *Professional advice.* The commission may seek advice from such professional resources as deemed necessary, subject to the availability of funding.

(Ord. No. 615, § 1, 10-25-2023)

ARTICLE III. ADMINISTRATIVE CODE*

DIVISION 1. GENERALLY

Sec. 2-141. Established.

There is hereby established for the city an administrative code for the purpose of dividing the administrative service of the

***Charter references**—Administrative code, § 33; oath of office, § 59.

Cross reference—Personnel advisory board, § 2-101 et seq.

city into departments, divisions and bureaus, and for the purpose of defining the functions and duties of each such department, division and bureau.
(Ord. No. 262, § 1, 1-11-89)

Sec. 2-142. Departmental organization.

The administrative service of the city shall be divided under the manager into the following departments:

<i>Department Name</i>	<i>Official Head</i>
Department of city administration	City manager
Department of finance	Director
Department of fire	Chief
Department of health and welfare	Director
Department of libraries	City librarian

<i>Department Name</i>	<i>Official Head</i>
Department of recreation, parks and playgrounds	Director
Department of planning and development	Director
Department of police	Chief
Department of public works	Director
(Ord. No. 262, § 3, 1-11-89)	
Charter references —Officers, § 32; administrative departments, § 33.	

Secs. 2-143—2-155. Reserved.

DIVISION 2. DEPARTMENT OF ADMINISTRATION—
CITY MANAGER*

Sec. 2-156. Generally, head.

The department of administration shall be headed by the city manager who shall supervise the heads of all departments established by this Code, and shall have the power to suspend and discipline and to perform or delegate the duties and responsibilities of such department heads. The city manager, with the objective that the financial interests of the city at all times be protected, shall be responsible for financial planning, budgeting, reporting, and control.
(Ord. No. 262, § 4.1, 1-11-89)

Sec. 2-157. Department heads.

It shall be the duty of the city manager to appoint qualified personnel as department or office heads. The head of one (1) or more departments or offices may be the manager himself. This department shall be divided into the divisions and perform the functions, and such others as may be delegated by law or ordinance.
(Ord. No. 262, § 4.2, 1-11-89)

***Charter reference**—City manager, § 26 et seq.

Sec. 2-158. City manager generally.

The city manager shall be the chief executive and administrative officer of the city government. He shall be responsible for the proper administration and preservation of public health, the safety of property and the management of all municipally-owned utilities and be in responsible charge of the maintenance, care, construction or otherwise of all streets, highways, bridges, sewers, parks, playgrounds, buildings and all other municipally-owned structures.

(Ord. No. 262, § 2.1, 1-11-89)

Cross references—Parks and recreation, Ch. 12; streets, sidewalks and other public places, Ch. 17; utilities, Ch. 20.

Sec. 2-159. Appointment of personnel.

(a) Except for police personnel, the city manager shall have the power to appoint and remove, in accordance with the merit system and Charter, all officers and employees in the administrative service of the city; but the manager may authorize a department head or officer responsible to him to appoint and remove subordinates of such department head or office.

(b) There shall be appointed by the city manager such officers as the city manager deems necessary to conduct the business of the departments, divisions or bureaus herein established.

(Ord. No. 262, §§ 2.2, 2.3, 1-11-89)

Sec. 2-160. Designation of acting personnel.

Whenever any office or position in the administrative service is vacant, or whenever the incumbent of any such office or position is unable to perform the duties thereof by reason of absence or disability, the city manager, may designate some other officer or employee or himself to perform the duties thereof in an acting capacity.

(Ord. No. 262, § 2.4, 1-11-89)

Sec. 2-161. Issuance of permits, licenses generally.

The city manager shall be responsible for the issuance of permits and licenses for parades, games, carnivals, street

advertising and lecturing, or any other activity of a public nature, unless by law or ordinance the issuance thereof is specifically delegated to some other person.
(Ord. No. 262, § 4.3, 1-11-89)

Sec. 2-162. Investigatory authority.

The city manager shall have the power, either by himself or by any officer or person designated for the purpose by him, to investigate and to examine or inquire into the affairs or operation of any department, division, office or official conduct of any employee. When funds have been appropriated by council, he shall have power to employ consultants and professional counsel to aid in such investigations, examinations, or inquiries.
(Ord. No. 262, § 2.5, 1-11-89)

Sec. 2-163. Division of personnel.

The city manager may appoint a human resources coordinator, who shall be responsible for the management and administration of the personnel program in accordance with the personnel regulations established in the merit system rules and regulations. The human resources coordinator shall maintain a complete roster of employees which shall include adequate histories as well as files of position classifications, job specifications, salary and wage standards, and such other forms and records as he deems necessary. The human resources coordinator shall perform all duties defined in the merit system rules and regulations.
(Ord. No. 262, § 2.7, 1-11-89; Ord. No. 536, § 1, 5-14-2014)

Cross reference—Personnel classification and pay schedules, App. B.

Sec. 2-164. Division of purchases.

The city manager may appoint a purchasing agent, who shall do all of the purchasing required by the various departments, divisions, bureaus, offices and institutions of the city. The purchasing agent may enter into such voluntary cooperative purchasing agreements as he deems prudent with the administrators of any tax-supported agency.
(Ord. No. 262, § 2.8, 1-11-89)

Cross reference—purchasing procedures, purpose and intent, § 2-335 et seq.

Sec. 2-165. Division of law.

The division of law shall be headed by a city solicitor who shall perform or cause to be performed all legal services of the city, including those of legal advisor to the council and the manager and the prosecution of cases arising out of the violation of the provisions of this Code and city ordinances. He shall also represent the city in matters in which the city is interested coming before any court or tribunal, and shall prosecute or defend all suits for or against the city or against its officers for causes arising from official acts, settle and compromise claims or suits at law, and perform such other duties as may be required by the council or manager. He shall be charged with the responsibility for calling to the attention of the council and the manager all matters of law affecting the city or its officers. (Ord. No. 262, § 2.9, 1-11-89)

Sec. 2-166. Municipal airport.

The division of municipal airports shall be administered by the city manager or designee who shall be responsible for the maintenance, operation and care of the landing, parking and storage facilities as well as the hangars, buildings, and other structures or appurtenances on, or used in conjunction with any municipally-owned airport. He shall also be in responsible charge of the leasing or renting of any of the facilities, structures or otherwise of the airport and shall grant concessions or time-limit leases when authorized by the council to do so. (Ord. No. 262, § 2.10, 1-11-89)

Cross references—Airport advisory board, § 2-36 et seq.; airport approach district, § 22-486 et seq.

Secs. 2-167—2-180. Reserved.

DIVISION 3. DEPARTMENT OF FINANCE*

Sec. 2-181. Generally, head.

The department of finance shall be headed by a finance director who shall be responsible for planning, directing, control-

***Charter reference**—Financial control, § 37.

Cross references—Licenses and business regulations, Ch. 8; special assessments, Ch. 15; taxation, Ch. 18; utility rates, charges and billing procedures, § 20-156 et seq.

ling, coordinating and staffing all activities of the finance department. This department shall be divided into the functional divisions as provided in this division.
(Ord. No. 262, § 5.1, 1-11-89)

Sec. 2-182. Division of accounting and control.

The division of accounting and control shall be headed by the finance director who shall be responsible for the proper pre-audit and recording of all financial transactions including all purchases by the purchasing agent as to the price, authenticity of the purchase and other like safeguards. The finance director may, with the approval of the manager, employ the use of laboratories for testing materials, supplies and equipment before approving payment vouchers. The finance director shall certify that each transaction is legal and that proper purchasing procedures have been followed. In addition to his other duties, the finance director shall act as the budget officer of the city, aiding and advising the manager in the preparation of the annual budget. When accounting for receipts or disbursements in the water and sewer department, the water and sewer accounts shall be separate in all instances.

(Ord. No. 262, § 5.2, 1-11-89)

Charter reference—Auditor appointed by city manager, § 32.

Cross references—Utilities, Ch. 20; rates, charges and billing procedures, § 20-156 et seq.

Sec. 2-183. Division of the treasury.

(a) The division of the treasury shall be supervised by a city treasurer, whose duty it shall be to collect all bills owing to, or for services rendered by, the city except bills for taxes, water rent and sewer rentals. He shall also be charged with the collection of all license fees which are not specifically collectable by any other officer. All moneys received by the city treasurer shall be deposited daily to the credit of the city in the official depository. The treasurer shall be responsible for the performance of all duties required of him by the city manager or state law, or ordinance. Insurance policies will be on file in the office of the city treasurer.

(b) In addition to the foregoing, the city treasurer shall:

- (1) Provide, at the expense of the city, suitable books in which he shall enter, according to forms approved by the auditor, fair, detailed, and correct records of all sums of money received into and paid from the treasury and of all his other official acts. In so far as the manager shall approve or direct, he shall also record all amounts receivable and payable and other assets and liabilities of the city. He shall also keep separate accounts with each appropriation.
- (2) Deposit, daily in the official depository to the credit of the city, the public moneys coming into his care. All interest received on such deposits shall be paid into the city treasury.
- (3) Pay, after the required approval of the auditor, all sums due by virtue of the appropriations on warrants drawn by the city manager out of unencumbered funds and pay the principal or interest on all loans which may at any time become due providing unencumbered funds are available. All bills and obligations of the city shall be paid from his office and he shall prepare the same for presentation to the auditor and city manager.
- (4) Receive from all city departments and institutions except the water and sewer and the school departments and the E. Charles Goodwin Community Center all moneys received for the city from sources outside of the city treasury and prepare and maintain a full and detailed statement thereof, including the date of and the source from which the same was received and the consideration therefor, with properly classified totals of such accounts in all reports.
- (5) Perform any other duties of like nature as may be required by the city manager.

(Ord. No. 262, § 5.3, 1-11-89)

Charter reference—Treasurer appointed by city manager, § 32.

Sec. 2-184. Division of records.

The division of records shall be supervised by a city clerk who shall keep and maintain all election records and have custody of all property used in connection with elections. He shall prepare, attest and report on the vital statistics of the city. He shall publish all legal notices required by law or ordinance. He shall perform such other duties as may be required by law or ordinance.

(Ord. No. 262, § 5.4, 1-11-89)

Charter reference—City clerk appointed by the city manager, § 32.

Sec. 2-185. Division of tax collection.

The division of tax collection shall be headed by a tax collector who shall collect all taxes in the manner authorized and required by law. It shall also be the duty of the tax collector to collect water rents and sewer rentals.

(Ord. No. 262, § 5.5, 1-11-89)

Charter reference—Assessors and collector appointed by city manager, § 32.

Cross references—Special assessments, Ch. 15; taxation, Ch. 18; utility rates, charges and billing procedures, § 20-156 et seq.

Sec. 2-186. Division of finance.

For the purposes of control in the execution of the budget the city finance director, as head of the finance department, has the following duties:

- (1) Audit all demands by the city, and to pre-audit all accounts to be presented to the manager for approval.
- (2) Control the payment of all moneys into the treasury, and all payments from the treasury by preparation of appropriate warrants from the manager authorizing and directing such payments.
- (3) Prescribe the system of accounts and reports of financial transactions by all offices of the city.
- (4) Keep the central or general accounts of the city.
- (5) Prepare and submit to the city manager and council monthly reports setting forth in detail and in summary

form the financial condition and operations of the city and such other reports as the city manager may from time to time require of him.

- (6) Render such assistance to the city manager in the preparation of the budget as the latter may require of him.
 - (7) Make such investigations of the organization, activities, and methods of procedure of the several departments as he may be called upon by the city manager to make.
- (Ord. No. 262, § 5.6, 1-11-89)

Charter reference—Budget procedure, § 40 et seq.

Cross references—Budget procedure, § 2-356 et seq.; fees, § 2-376 et seq.; taxation, Ch. 18.

Sec. 2-187. Payment by credit card.

(a) The city treasurer or other designated municipal official is hereby authorized to accept payment of all amounts due to the City of Claremont from property taxes, sale of utility services, or other fees or charges by use of a credit card, debit card or electronic transfers.

(b) The amount due shall include all accrued interest and penalties, if any, and shall include a service charge (also referred to as a "convenience fee") for acceptance of the transaction.

(c) All payments made by means of credit cards, debit cards or other electronic transfers will incur a service charge (convenience fee) calculated based on the payment amount and fee assigned by the transaction processor, which will be indicated prior to confirmation of the total payment.

(d) Service charges (convenience fees) shall include processing fees and actual costs incurred by the city on any such authorized transaction that are over and above the actual amount otherwise due to the city.

(e) The city manager is authorized to determine the specific credit cards, debit cards or electronic transfers that will be accepted under this section.

(f) The city treasurer or other designated municipal official is authorized to decline payment under this section from any individual or entity for any amount due to the city where there is an indication that insufficient funds are available to complete the transaction.

(Ord. No. 523, § 1, 8-10-2011)

Secs. 2-188—2-200. Reserved.

DIVISION 4. DEPARTMENT OF FIRE*

Sec. 2-201. Generally, head.

The department of fire shall be headed by a fire chief who shall be charged with the prevention of fires, the protection of life and property against fire, and the removal of fire hazards. It shall be the duty of the fire chief to report all fire losses over fifty (50) percent of the valuation to the assessor. The fire chief shall be responsible for the maintenance and care of all property and equipment used by his department. This department shall be divided into the functional divisions provided in this division.

(Ord. No. 262, § 6.1, 1-11-89)

Sec. 2-202. Division of firefighting.

The firefighting division shall be responsible for the fighting of fires, the saving of life and property from fire, and the performance of various miscellaneous public services of an emergency nature. In addition, this division shall be responsible for the inspecting of all business establishments for fire hazards once a year and the inspection of any other premises as assigned by the fire prevention officer.

(Ord. No. 262, § 6.2, 1-11-89)

***Charter reference**—Fire chief appointed by the city manager, § 32.

Cross references—Fire prevention and protection, Ch. 6; housing standards, § 6-26 et seq.; mobile homes, recreational vehicles and mobile and recreational vehicle parks, Ch. 10; fire lanes, § 19-146 et seq.

Sec. 2-203. Division of signal service.

The signal service division shall be supervised by a fire alarm superintendent directly responsible to the fire chief, who shall be charged with the construction, repair and maintenance of all facilities of the fire alarm signal system and coordinate the repair and maintenance of the traffic signals in the city.
(Ord. No. 262, § 6.3, 1-11-89)

Sec. 2-204. Division of fire prevention and building inspection.

The division of fire prevention and building inspection shall be supervised by the fire prevention officer and building inspector, who shall work under the supervision of the fire chief and are responsible for inspections of all buildings and places of public assembly. They review building plans and make inspections of new and renovated construction as needed. The fire prevention officer is responsible for the conducting of educational fire prevention programs.
(Ord. No. 262, § 6.4, 1-11-89)

Cross references—Buildings and building regulations, Ch. 5; fire prevention and protection, Ch. 6; housing standards, § 7-26 et seq.

Secs. 2-205—2-215. Reserved.**DIVISION 5. DEPARTMENT OF HEALTH
AND WELFARE*****Sec. 2-216. Generally, head.**

The department of health and welfare shall be headed by a city health officer, who is a member of the board of health, who shall have charge of all functions involved in protecting and preserving the public health. He shall have the powers provided

***Charter reference**—Health officer appointed by the city manager, § 32.

Cross references—Housing standards, § 7-26 et seq.; nuisances, Ch. 11; solid waste, Ch. 14; utilities, Ch. 20.

by law or ordinance relative thereto and shall enforce the rules and regulations of the board of health of the city and the laws of the state.

(Ord. No. 262, § 7.1, 1-11-89)

Sec. 2-217. Duties of health officer.

The duties of the health officer shall be as follows:

- (1) Routing, regular and comprehensive inspection of all food handling stores to determine the existence or maintenance of any unclean, unhealthy or unsanitary condition or practice in such establishment or place where food is produced, manufactured, stored or sold including any car or vehicle used for the transportation or distribution thereof, within the limits of the city.
- (2) Investigate all sanitary hazards and enforce all state and local sanitary laws and ordinances.
- (3) Procure, study and analyze data concerning public health, and take whatever action is necessary to protect and preserve the public health.
- (4) It shall be the duty of the health officer to investigate complaints and inspect dwellings to determine the fitness for human habitation. It also is within his power, in conjunction with state and local regulations, to condemn such a dwelling until it is once again made fit for habitation by humans.

(Ord. No. 262, § 7.2, 1-11-89)

Sec. 2-218. Department of welfare.

The department of welfare shall consist of the director of welfare and such other personnel as may be recommended by the city manager and approved by the city council.

(Ord. No. 262, § 7.3, 1-11-89)

Sec. 2-219. Duties of welfare director.

(a) The director of welfare shall, with the objective that the interests of the city shall at all times be protected, be responsible for the control of the city welfare program, except insofar as the duties of the director are regulated by state law.

(b) The director of welfare shall also perform the following functions:

- (1) Investigate all requests for relief.
 - (2) Authorize such relief as may be deemed necessary.
 - (3) Prepare and maintain all necessary relief records.
 - (4) Perform all other related duties as required.
- (Ord. No. 262, §§ 7.4, 7.5, 1-11-89)

Secs. 2-220—2-230. Reserved.

DIVISION 6. DEPARTMENT OF LIBRARIES*

Sec. 2-231. City librarian.

The Fiske Free Library shall be supervised by a city librarian who shall be responsible for the selection, care, rebinding, cataloging and replacing of all books, periodicals, audio-visual materials and microforms of the library. The librarian shall be qualified by education to provide leadership in the use of books and related materials. The librarian shall be responsible for the care and maintenance of the property and equipment used in the library.

(Ord. No. 262, § 8.1, 1-11-89)

Sec. 2-232. Library board of trustees.

(a) *Membership.* The library board of trustees shall consist of five (5) regular members and no more than three (3) alternate members, all of whom must be residents of the city. All members, including alternate members, shall be appointed by the city council.

(b) *Term.* Regular and alternate members shall be appointed for three-year terms. The initial terms of members shall be staggered so that no more than two (2) appointments of either regular or alternate members occur annually, except when required to fill vacancies. In the event of a vacancy in member-

***Cross reference**—Streets, sidewalks and other public places generally, Ch. 16.

ship, the chairperson may designate an alternate member to fill the vacancy temporarily until the vacancy is filled by the city council, which appointment shall be for the unexpired term.

(c) *Officers, quorum.* The trustees shall annually, at its initial meeting in each year, elect a chairperson and vice-chairperson from its membership. A majority of the membership shall constitute the quorum necessary to transact business at any meeting.

(d) *Meetings.* Meetings shall be held at the call of the chairperson and at such other times as the trustees may determine.

(e) *By-laws.* The trustees may adopt by-laws to govern the board's proceedings.

(f) *Duties.* The library board of trustees shall act as an advisory group to the city manager regarding the selection and hiring of a qualified city librarian, assist in budget preparation and make recommendations for library construction or capital improvements, recommend policy, use and management of the Fiske Free Library according to established state standards, recommend the acceptance of gifts for use in the library and other matters concerning the Fiske Free Library.

(Ord. No. 262, § 8.2, 1-11-89; Amend. No. 6, § 9, 5-8-91; Ord. No. 525, § 1, 3-14-2012)

Cross reference—Boards, committees, commissions, § 2-26 et seq.

Secs. 2-233—2-245. Reserved.

DIVISION 7. DEPARTMENT OF RECREATION,
PARKS AND PLAYGROUNDS*

Subdivision I. In General

Sec. 2-246. Generally, head.

The department of recreation, parks and playgrounds shall be headed by a director who shall have the power and authority,

***Cross references**—Parks and recreation, Ch. 12; streets, sidewalks and other public places, Ch. 16.

subject to the approval of the city manager, to operate, maintain, manage and supervise all existing public playgrounds, athletic fields, swimming pools, tennis courts, municipal camps and other recreational facilities on or in any public grounds or buildings either within or without the city; owned by the city; or on or in any public grounds or buildings hereafter acquired which the city may from time to time authorize, offer, designate, or set apart for such use and shall further have power, with the consent of the school board of the Claremont School District, to organize and conduct play and recreational activities on grounds and in buildings under the control of the school board, provided that nothing in this section shall be construed to abridge the powers of the school board to refuse the use of any of its grounds or buildings; and he shall have power and authority to operate and maintain such privately-owned lands or buildings whose use for public recreational purposes may be temporarily granted by the owners and accepted by the city. The director shall be responsible for permitting the use of such public playgrounds, parks, athletic fields and other structures under his control but nothing in this section shall be construed to mean or include the leasing, or renting or the granting of concessions. The director of recreation shall be responsible for the maintenance of any public playground, athletic field, swimming pools or other facilities under his operation and supervision, through the division of parks and playgrounds.

(Ord. No. 262, § 9.1, 1-11-89)

Sec. 2-247. Division of parks and playgrounds.

The division of parks and playgrounds shall be a part of the department of recreation, parks and playgrounds and shall be charged with the maintenance of all parks, playgrounds and recreational facilities and all property and equipment associated in performance of the maintenance shall be performed under the direction and control of the director of the department of recreation, parks and playgrounds.

(Ord. No. 262, § 9.2, 1-11-89)

*Subdivision II. Parks and Recreation Commission***Sec. 2-248. Established.**

There is hereby created a parks and recreation commission to act in an advisory capacity to the director of the parks and recreation department in the operation of the city's various parks and open spaces, as well as the city's recreational programs and facilities in order to maximize the benefit of these resources to the citizens of Claremont. It is intended that this commission shall also carry forward the work of the former Goodwin Community Center Commission in providing activities to benefit the physical and mental welfare of all persons.

(Ord. No. 538, § 1, 9-10-2014)

Sec. 2-249. Membership.

(a) *Organization.* The parks and recreation commission shall consist of seven (7) regular members and up to seven (7) alternate members, all of whom must be residents of the city and who have a demonstrated interest in the city's parks, recreational facilities and programs.

(b) *Membership.* Membership shall be at large, but there shall be at least one (1) commission member and at least one (1) alternate who is a resident of each ward within the city. One (1) commission member may be a member of the city council, who shall serve ex officio and who may vote on any matter before the commission. The director of the parks and recreation department shall attend commission meetings but shall not be a member of the commission. All members of the commission, including alternate members, shall be appointed by the city council.

(c) *Term.* Members shall be appointed for three-year terms. The initial terms of the membership shall be staggered so that no more than two (2) appointments occur annually, except when required to fill vacancies. The term of an ex officio member shall coincide with the term of the ex officio member's other elected or appointed office. In the event of a vacancy in membership, the chairperson may designate an alternate member to fill the vacancy temporarily until the vacancy is filled by the city

council, which appointment shall be for the unexpired term. Members serving on the parks and recreation commission as constituted as of the adoption of this provision shall continue as members of the commission under this provision until the expiration of their appointments. To the extent there are remaining members of the former Goodwin Community Center Commission, such members shall, if they so desire, be appointed to vacant seats as regular or alternate members of the parks and recreation commission as set forth under this provision.

(d) *Officers, quorum.* The parks and recreation commission shall annually, at its initial meeting in each year, elect a chairperson and vice-chairperson from its membership. A majority of the membership shall constitute a quorum necessary to transact business at any meeting.

(e) *Meetings.* Meetings shall be held at the call of the chairperson and at such other times as the commission may determine. The commission may adopt by-laws for the conduct of its meetings and shall keep or cause to be kept, accurate and complete records and minutes of its meetings and recommendations pursuant to RSA 91-A.

(Ord. No. 538, § 2, 9-10-2014)

Secs. 2-250—2-260. Reserved.

DIVISION 8. DEPARTMENT OF PLANNING AND
DEVELOPMENT*

Sec. 2-261. Generally, head.

The department of planning and development shall be under the supervision of the planning and development director. This department shall be divided into the functional divisions provided in this division.

(Ord. No. 262, § 10.1, 1-11-89)

***Cross references**—Buildings and building regulations, Ch. 5; housing standards, § 7-26 et seq.; mobile homes, recreational vehicles and mobile home and recreational vehicle parks, Ch. 10; parks and recreation, Ch. 12; solid waste, Ch. 14; streets, sidewalks and other public places, Ch. 16; subdivisions, Ch. 17; zoning, Ch. 22.

Sec. 2-262. Assessing division.

The assessing division shall consist of a state D.R.A. certified appraiser, and other personnel as may be approved by the city manager. The city assessor and staff shall perform the following functions:

- (1) The city assessor shall act in all manners as the assessing official and carry out all the duties relative to appraisal of property for taxation as the assessing official as provided by law.
 - (2) Prepare all assessments and tax rolls and notices as required by law and submit assessments for use in the billing of taxes
 - (3) Review all property transfers and maintain all property records pertaining to the assessing function.
 - (4) Review and approve or deny all abatement requests, applications for exemptions, credits and deferrals.
 - (5) Defend the abatement decisions appealed to the NH board of tax and land appeals or superior court, including resolving same through negotiations.
 - (6) Prepare and submit regular reports to the Mayor and City Council detailing abatement requests made, abatements granted or denied, abatements appealed to the NH board of tax and land appeals or the superior court and the outcome or disposition of any appeal.
 - (7) The assessing division staff shall support the duties of the city assessor.
 - (8) Perform other functions as required.
- (Ord. No. 262, § 10.2, 1-11-89; Ord. No. 565, § 1, 3-13-2019; Ord. No. 597, § 2, 9-28-2022)

Cross references—Special assessments, Ch. 15; taxation, Ch. 18.

Sec. 2-263. Planning division.

The planning division shall perform the following functions:

- (1) Investigate, study, and report on matters relating to zoning, including the preparation, revision, and modification of ordinances and maps.

- (2) Investigate, study, and report on all phases of highway layout; widening, abandonment and use, and traffic and parking problems.
 - (3) Investigate, study, and report on phases of subdivision control.
 - (4) Investigate, study, and report on all matters relating to construction and use of municipal structures, buildings, land, (including tax title land), parks, playgrounds and other municipal property.
 - (5) Act as a research agency in other municipal matters as required.
 - (6) Perform all other functions as required.
- (Ord. No. 262, § 10.3, 1-11-89)

Cross references—Streets, sidewalks and other public places, Ch. 16; subdivisions, Ch. 17; traffic and motor vehicles, Ch. 19; site plan regulations, App. C; earth excavation regulations, App. D; subdivision regulations, App. E.

Sec. 2-264. Zoning division.

The division of zoning shall perform the following functions:

- (1) Be responsible for the explanation of the zoning ordinances, answering questions asked by the public concerning use in all zones, investigating all complaints concerning zoning.
- (2) Inspect new construction, remodeling and land use for conformity with zoning.
- (3) Issue all permits for the erection of signs.
- (4) After coordination with city manager and legal counsel, prosecute all violations of law within its jurisdiction.
- (5) Perform all other functions that may be required by law or ordinance.

(Ord. No. 262, § 10.4, 1-11-89)

Cross reference—Zoning, Ch. 22.

Sec. 2-265. Other responsibilities.

The department of planning and development and its director are also responsible for the following areas:

- (1) *Historic District Commission*: Its meetings, functions and concerns.
- (2) *Claremont Development Authority (CDA)*: Its meetings, functions and concerns. The CDA shall reimburse the City for time spent by City employees on CDA activities.
- (3) *Community development efforts* of the city, including the administration of grants.

(Ord. No. 262, § 10.5, 1-11-89; Ord. No. 620, § 3.B, 2-28-2024)

Secs. 2-266—2-280. Reserved.

DIVISION 9. DEPARTMENT OF POLICE*

Sec. 2-281. Generally, head.

The department of police shall be headed by the chief of police. The department shall enforce the laws of the state, this Code and the ordinances of the city that come under the jurisdiction of the police department. It also shall safeguard the persons and property of its residents and visitors, and promote crime prevention. The department of police shall operate in coordination with the police commission as set forth in sections 2-134 through 2-137.

(Ord. No. 262, § 11.1, 1-11-89; Ord. No. 570, § 2, 10-9-2019)

Sec. 2-282. Reserved.

Editor's note—Ord. No. 570, § 1, adopted Oct. 9, 2019, repealed § 2-282, which pertained to powers of the police commission and derived from Ord. No. 262, § 11.2, Jan. 11, 1989.

Cross reference—Boards, committees, commissions, § 2-26 et seq.

Secs. 2-283—2-295. Reserved.

DIVISION 10. DEPARTMENT OF PUBLIC WORKS†

Sec. 2-296. Generally, head.

The department of public works shall be headed by a director, who shall be responsible for the overall administration and management of the department. This department shall be divided into the functional divisions provided in this division.

(Ord. No. 262, § 12.1, 1-11-89)

Sec. 2-297. Division of cemeteries.

The division of cemeteries shall be supervised by a superintendent who shall act as sexton and be responsible for the supervision, operation and maintenance of cemetery grounds,

***Cross references**—Miscellaneous offenses, Ch. 9; police, Ch. 13; traffic and motor vehicles, Ch. 19.

†**Cross references**—Streets, sidewalks and other public places, Ch. 16; cemeteries, § 16-76 et seq.; utilities, Ch. 20.

structures and appurtenances, and the opening of graves and the laying of foundations for headstones. The superintendent shall be responsible for the maintenance and care of all property and equipment used by this division, and perform all other functions as required.

(Ord. No. 262, § 12.2, 1-11-89)

Sec. 2-298. Division of highways.

The division of highways shall be supervised by a superintendent who shall have charge of the maintenance of all sidewalks, improved and unimproved street surfaces, the proper care and maintenance of vegetation, including trees, over, in and on the public rights-of-way, the cleaning of snow, the maintenance of bridges, the collection of municipal rubbish, the operation of the city transfer station and such other problems of maintenance and service as may be required of the division by the director. The highway division shall be responsible for the maintenance and care of all property and equipment used by the public works department and perform all other functions as required.

(Ord. No. 262, § 12.3, 1-11-89; Ord. No. 553, § 1, 4-12-2017)

Sec. 2-299. Division of water and sewer.

The division of water and sewer shall be supervised by a superintendent who shall have charge of the operation, and maintenance of the city water distribution and sewage systems. It shall be the responsibility of the superintendent to maintain and care for all property and equipment used by the division and perform all other functions as required.

(Ord. No. 262, § 12.4, 1-11-89)

Sec. 2-300. Division of wastewater treatment.

The division of wastewater treatment shall be headed by a superintendent who shall be responsible for the overall operation, maintenance, and management of the city wastewater treatment plant. The superintendent shall be responsible for the maintenance and care of all property and equipment used by the division and perform all other functions required.

(Ord. No. 262, § 12.5, 1-11-89)

Sec. 2-301. Division of water treatment.

The division of water treatment shall be supervised by a superintendent who shall be in charge of the operation and maintenance of the water treatment plant. The superintendent shall be responsible for the maintenance and care of all property and equipment used by the division and perform all other functions required.

(Ord. No. 262, § 12.6, 1-11-89)

Secs. 2-302—2-315. Reserved.**DIVISION 11. ADMINISTRATIVE POLICIES AND
PROCEDURES****Sec. 2-316. Duties of officers.**

Each officer of the city shall perform all duties required of his office by state law and the Charter and ordinances of the city, and such other duties not in conflict therewith as may be required by the city manager.

(Ord. No. 262, § 13, 1-11-89)

Sec. 2-317. General responsibilities of department heads.

The heads of the various administrative departments shall be immediately responsible to the city manager for the effective administration of their respective departments and all activities assigned thereto. In case of a vacancy in office or during the absence of any department head, excluding the police chief, the city manager may designate an interim acting head or perform personally the functions of the office. All department heads shall keep informed as to the latest practices in their particular field and shall inaugurate with the approval of the manager, such new practices as appear to be of benefit to the service and to the public.

(Ord. No. 262, § 14, 1-11-89)

Sec. 2-318. Departmental records and reports.

Reports of the activities of each department shall be made to the city manager each month, or when he so desires and an annual written report shall be filed with the city manager within sixty (60) days after the end of the fiscal year. Such reports shall be in proper form and sufficient detail to furnish adequate information for the proper control of departmental activities.

(Ord. No. 262, § 15, 1-11-89)

Sec. 2-319. Preservation of public records.

Each department head shall be responsible for the preservation of all public records under his jurisdiction and shall provide a system of filing and indexing same. No public records, reports, correspondence or other data shall be removed permanently unless authorized by law or ordinance, or without the knowledge and approval of the city manager.

(Ord. No. 262, § 16, 1-11-89)

Sec. 2-320. Cooperation between departments.

It shall be the duty of every department or office, subject to approval of the city manager, to furnish to any other department or office such service, labor, and materials as may be requisitioned by the head of such department, and as its own facilities permit, through the same procedure and subject to the same audit and control as other expenditures as incurred.

(Ord. No. 262, § 17, 1-11-89)

Sec. 2-321. Delegation of duties.

The city manager may direct any department, division or bureau, or may delegate to any officer or employee any duties in addition to those established for the department, division or bureau to which he may be assigned.

(Ord. No. 262, § 18, 1-11-89)

Sec. 2-322. Adherence to the merit principle.

All employees are required to adhere strictly to the merit system rules and regulations in order that the merit principle of employment as provided for in the Charter shall be maintained. (Ord. No. 262, § 19, 1-11-89)

Sec. 2-323. Payment of moneys.

All moneys belonging to the city shall be paid out only as authorized by the Charter and only by checks drawn by the treasurer or the city manager. (Ord. No. 262, § 20, 1-11-89)

Sec. 2-324. Approval of legal documents.

The city manager shall sign and approve as to substance and the solicitor shall approve as to form all legal instruments requiring the assent of the city unless otherwise provided for by law, the Charter or ordinance. The requirement herein as to signature, attestation and approval as to substance and form shall not apply with respect to bonds and notes of the city. (Ord. No. 262, § 21, 1-11-89)

Sec. 2-325. Safe keeping of securities.

The city council may provide for such security for city deposits as it may deem necessary except that personal surety bonds shall not be deemed proper security. Any city officer elected or appointed by authority of the Charter, this Code, or other ordinance may be required by the council to give bond to be approved by the city solicitor for the faithful performance of the duties of his office, but the city manager and all officers disbursing city funds shall be so bonded. All official bonds shall be corporate surety bonds and the premium thereon shall be paid by the city. All bonds of a nature mentioned in this section shall be filed with the city clerk. (Ord. No. 262, § 22, 1-11-89)

Secs. 2-326—2-334. Reserved.

DIVISION 12. PURCHASING PROCEDURES, PURPOSE
AND INTENT*

Sec. 2-335. Purpose and intent.

- (a) The purpose of these purchasing procedures shall be to:
 - (1) Procure the necessary quality and quantity of goods and/or services in an efficient, timely and cost-effective manner, while maintaining the controls necessary for a public institution, in accordance with accepted purchasing practices as otherwise specified herein.
 - (2) Encourage the most open, competitive purchasing process practicable for the acquisition of goods and/or services with the objective of obtaining maximum possible value while maintaining fair and equitable treatment of vendors.
 - (3) Ensure that the maximum value of an acquisition is obtained by determining the total cost of performing the intended function over the lifetime of the task. This may include, but not be limited to, acquisition cost, installation, disposal value, disposal cost, training cost, maintenance cost, and quality of performance and/or environmental impact.
 - (4) To carry out all purchases in accordance with the City of Claremont Code of Conduct.

(b) It is the intent of this policy, by stating specific monetary limitations, to prohibit the practice of "ticket splitting.†" Notwithstanding, it is expected that unanticipated purchases over the course of any fiscal year may, when taken together, exceed the limitations for a single purchase. To the degree that such purchases are made that, when taken together, exceed the

***Editor's note**—Ord. No. 581, § 1, adopted Oct. 28, 2020, amended the title of Div. 12 from "Purchasing Procedures" to "Purchasing Procedures, Purpose and Intent."

Charter reference—Purchasing procedure, § 35.

Cross reference—Division of purchases created, § 2-164.

†The term "ticket splitting" is meant to describe circumstances under which two (2) or more items are purchased on separate invoices for the sole purpose of avoiding or circumventing the requirements of the City of Claremont purchasing policies and procedures they pertain to larger dollar value purchases.

single purchase limitations; such purchases shall not be deemed a violation of this policy in the absence of clear and convincing evidence of "ticket splitting."
(Ord. No. 581, § 1, 10-28-2020)

Sec. 2-336. General purchasing policies: \$5,000.00—\$30,000.00.

- (a) See section 3-335, pertaining to purchasing procedures.
- (b) *General purchasing process for low dollar value purchases up to five thousand dollars (\$5,000.00).*
 - (1) The purpose of this policy is to provide guidelines for low dollar value purchases up to five thousand dollars (\$5,000.00), which shall be undertaken in accordance with the following:
 - a. The city department heads shall have authority to purchase goods and services directly up to the value of five thousand dollars (\$5,000.00). This purchasing function shall be decentralized and it will be the responsibility of the department head to follow the guidelines established herein and to contemporaneously notify the finance department of such purchases so that the any resultant invoice may be processed in a timely and efficient manner. In addition to the general purchasing objectives, all low dollar value purchases shall be undertaken in accordance with the following:
 - 1. Department heads shall seek to obtain the highest quality goods or services at the best possible price*, available at the right time and in the right quantities.

*The term "best possible price" as used throughout the document is intended to provide some flexibility in the awarding of a contract or purchase. The use of this term is intended to allow the city to consider factors such as quality, suitability, compatibility etc., and to recognize that these factors may dictate that other than the lowest priced good, product or service may be selected under circumstances where it represents the best overall value to the city. When other than the lowest priced good is selected, such decision shall not be arbitrary or capricious.

2. Department heads shall seek to acquire goods and/or services required from qualified suppliers in a manner in which promotes fair and equitable vendor relationships.
3. All purchases must be carried out in accordance with the limits of approved budgets.
4. The department head shall award the contract to the most responsible vendor whose product or service represents that greatest overall value to the city.

(c) *Policy for the acquisition of goods or services with a total purchase price greater than five thousand dollars (\$5,000.00) but not exceeding a total price of fifteen thousand dollars (\$15,000.00).*

- (1) The purpose of this policy is to provide guidelines for goods or services with value greater than five thousand dollars (\$5,000.00) but not exceeding fifteen thousand dollars (\$15,000.00), which shall be undertaken in accordance with the following:
- (2) The city department heads shall have authority to purchase goods and services up to a value of fifteen thousand dollars (\$15,000.00). This purchasing function shall be decentralized and it will be the responsibility of the department head to follow the guidelines established herein and to contemporaneously notify the finance department of such purchases so that the any resultant invoice may be processed in a timely and efficient manner. In addition to the general purchasing objectives, all purchases between five thousand dollars (\$5,000.00) and fifteen thousand dollars (\$15,000.00) shall be undertaken in accordance with the following:
 - a. The department head must obtain a minimum of three (3) quotations, which may be solicited by any method of written communication, the results of which shall be analyzed and tabulated prior to the award.
 - b. The department head shall seek to obtain the highest quality goods or services at the best possible price, available at the right time and in the right quantities.

- c. The department heads shall seek to acquire goods and/or services required from qualified suppliers in a manner which promotes fair and equitable vendor relationships.
- d. All purchases must be carried out in accordance with the limits of approved budgets.
- e. If less than three (3) quotes are received, and it is determined that additional solicitation would not yield additional vendor interest, the department head, in consultation with the director of finance, shall have the authority to waive the three-quote minimum requirement.
- f. The department head shall award the contract to the most responsible vendor with product or service that represents that greatest overall value to the city.
- g. The department head shall have the authority to reject any and all proposals if he/she determines, in his/her sole discretion, that additional solicitation may yield a more desirable result for the City of Claremont.
- h. Competitive bidding may be waived by purchasing goods, products, or services through vendors identified and selected as quoted in the current state of New Hampshire bid list*.

(d) *General purchasing policy for purchases from fifteen thousand dollars (\$15,000.00) to thirty thousand dollars (\$30,000.00).*

- (1) The purpose of this policy is to provide guidelines for goods or services with value greater than fifteen thousand dollars (\$15,000.00) but not exceeding thirty thousand dollars (\$30,000.00), which shall be undertaken in accordance with the following:
- (2) For the acquisition of goods or services for a total purchase price greater than fifteen thousand dollars

*The director of finance shall have the authority to expand the use of state bid lists to other states under circumstances where it is determined that the means of selection and pre-qualification for inclusion on such list should, in all likelihood, yield the most competitive overall pricing.

(\$15,000.00), but not exceeding the total price of thirty thousand dollars (\$30,000.00), department heads shall consult with the finance director prior to making any formal request for proposals or solicitation of bids. All requests for proposals or quotes shall, at a minimum, be advertised in a newspaper of local circulation. At least three (3) written quotations shall be obtained, analyzed, and the results tabulated prior to award. The department heads shall prepare the requests for proposal and/or the solicitation for bids and such documents shall be reviewed and approved by the director of finance prior to advertisement or dissemination.

All advertisements, requests for proposals or solicitation of bids shall be prepared in accordance with the following:

- a. The finance department/department head shall seek to obtain the highest quality goods or services at the best possible price, available at the right time and in the right quantities.
- b. The finance department/department head shall seek to acquire goods and/or services required from qualified suppliers in a manner in which promotes fair and equitable vendor relationships.
- c. All purchases must be carried out in accordance with the limits of approved budgets.
- d. If less than three (3) quotes are received, and it is determined that further solicitation would not yield additional vendor interest; the director of finance shall have the authority to waive the three-quote minimum requirements.
- e. The director of finance shall be consulted prior to the department head awarding the contract to the most responsible vendor with product or service that represents that greatest overall value to the city.
- f. The director of finance shall have the authority to reject any and all proposals if he/she determines, in

his/her sole discretion, that additional solicitation may yield a more desirable result for the City of Claremont.

- g. The director of finance may require pre-qualification of any vendor in accordance with subsection 2-337(b)(1)e. and f., below.
- h. Competitive bidding may be waived by purchasing goods, products, or services through vendors selected in the current State of New Hampshire bid list.*

(e) *General purchasing policy for purchases in excess of thirty thousand dollars (\$30,000.00).* The purpose of this policy is to provide guidelines for goods or services with value greater than thirty thousand dollars (\$30,000.00), which shall be undertaken in accordance with the following:

For acquisitions of goods and services with a total purchase price greater than thirty thousand dollars (\$30,000.00), the purchase shall, at a minimum, be advertised in a newspaper of local circulation. All requests for proposals (RFPs) for purchases in excess of thirty thousand dollars (\$30,000.00) shall be prepared by the department head in consultation with the director of finance. All RFP's for purchases in excess of thirty thousand dollars (\$30,000.00) shall also be reviewed by the city solicitor prior to advertisement or dissemination. At least three (3) written quotations shall be obtained, analyzed, and the results tabulated prior to the award. The city manager shall award any contract in excess of thirty thousand dollars (\$30,000.00).

All requests for proposals (RFPs) shall be prepared in accordance with the following:

- (1) The finance department/department head shall seek to obtain the highest quality goods or services at the best possible price, available at the right time and in the right quantities.

*The director of finance shall have the authority to expand the use of state bid lists to other states under circumstances where it is determined that the means of selection and pre-qualification for inclusion on such list should, in all likelihood, yield the most competitive overall pricing.

- (2) The finance department/department head shall seek to acquire goods and/or services required from qualified suppliers in a manner in which promotes fair and equitable vendor relationships.
 - (3) All purchases must be carried out in accordance with the limits of approved budgets.
 - (4) If less than three (3) quotes are received, and it is determined that additional solicitation would not yield additional vendor interest, the city manager or the director of finance shall have the authority to waive the three-quote requirement.
 - (5) The city manager shall award the contract to the most responsible vendor with product or service that represents that greatest overall value to the city.
 - (6) The city manager shall have the authority to reject any and all proposals if he/she determines, in his/her sole discretion, that additional solicitation may yield a more desirable result for the city.
 7. The city manager may require pre-qualification of any vendor in accordance with subsection 2-337(b)(1)e. and f, below.
 - (8) Competitive bidding may be waived by purchasing goods, products, or services through vendors identified and selected as quoted in the current state of New Hampshire bid list.*
- (Ord. No. 446, §§ I—V, 9-10-03; Ord. No. 581, §§ 2—7, 10-28-2020)

Sec. 2-337. Professional services.

(a) *Policy for consulting and professional services in excess of \$30,000.00.* The purpose of this policy is to set up guidelines for acquiring consulting and/or professional services for the City of Claremont with a value in excess of thirty thousand dollars

*The director of finance shall have the authority to expand the use of state bid lists to other states under circumstances where it is determined that the means of selection and pre-qualification for inclusion on such list should, in all likelihood, yield the most competitive overall pricing.

(\$30,000.00). It is the intent of this policy to create a multi-part system in which consultants, or those providing professional services, will be pre-qualified prior to the official acceptance of any quotations or cost proposals.

Under this multi-part system, vendors shall be qualified prior to considering any quotations or cost proposals. Unless otherwise modified herein, subsection 2-336(e) above shall govern all other aspects of soliciting interest and awarding contracts. The services of consultants or professionals that are not anticipated to generate costs in excess of thirty thousand dollars (\$30,000.00) may be secured in accordance with the general purchasing policies set forth herein unless it is determined by the department head, in consultation with the director of finance, that prequalification is desirable. In such case, this subsection and subsection 2-337(b) VII below shall govern purchases deemed to require prequalification.

Where the city is securing ongoing consulting or professional services, the city may enter into multi-year agreements with qualified vendors. However, no such contract shall be for a duration longer than five (5) years and shall include a fiscal funding clause that allows the city to withdraw from the contractual relationship should the city, acting in good faith, fail to appropriate enough funds to cover the costs anticipated in the agreement. This provision shall not be construed to apply to department heads hired by the city manager through contracted services. Such department heads serve at the pleasure of the city manager and in accordance with the Claremont City Charter, state, and/or federal law.

Consulting and/or professional services in excess of thirty thousand dollars (\$30,000.00) shall be acquired in accordance with the following:

- (1) *Part one.* The department head, in consultation with the finance department, shall send out requests for qualifications (RFQs). Upon receipt of the RFQs, the department head, in consultation with the director of finance, shall prepare a list of qualified vendors in accordance with subsection 2-237(b) below.

- (2) *Part two (optional).* The city may require any or all qualified vendors to participate in any means of pre-bid process including, but not limited to, meetings to develop the RFP or to establish the scope of work or services. This step in the process may be waived if it is determined, in the sole discretion of the city, to be unnecessary. Further, the department head may conduct such pre-bid process prior to establishing the list of pre-qualified vendors. Lastly, the city may require prospective vendors to submit scope proposals where it is deemed appropriate.

- (3) *Part three.* After vendors have been selected based upon qualifications and any pre-bid process is complete, quotations or cost proposals shall be solicited. Although not recommended, this process may be done simultaneous with the requests for qualifications if it is determined to be most beneficial to the city. Any quotation or cost proposal received from a vendor who has not been pre-qualified shall be destroyed prior to it being opened.

If the city decides to solicit scope proposals, the city may enter into negotiations with the most qualified vendor(s) with the best scope proposal to determine anticipated project costs. Ultimately, the contract shall be awarded to the vendor with the scope and cost proposal that represents the best overall value to the city.

- (b) *Policy of pre-qualification.*

- (1) This policy is intended to establish guidelines for the pre-qualifications of vendors. The purpose of pre-qualification is to ensure that each bidder can demonstrate that they have the necessary ability, expertise, and/or resources to satisfactorily complete the work or provide the goods required. Pre-qualification shall only be required in the following circumstances.

- a. The work is considered "high risk" with respect to regulations governed by the New Hampshire Department of Environmental Services, the Occupational Health and Safety Act, or any other state or federal law.

- b. The work is such that contract administration costs, work inspection, follow-up, extra fee negotiations could result in substantial costs to the city if the work is not satisfactorily performed on a timely basis.
 - c. The goods or equipment to be purchased must meet national safety standards, or if no standard has been established, certain performance, criteria, and conditions where pre-qualification is desirable.
 - d. Work involves complex, multi-disciplinary activities, specialized expertise, knowledge, equipment, materials, or financial requirements.
 - e. The material or goods to be provided may become scarce or otherwise limited in supply.
 - f. Prepayment is required or finding substitute services or goods may be difficult or otherwise inefficient.
- (2) In accordance with subsection 2-337(a), policy for consulting and professional services, there shall be a multi-part process where any sealed quotation or cost proposal shall only be entertained after pre-qualification. Any request for qualifications (RFQs) shall set forth criteria requiring bidders to provide information such as, but not limited to:
- a. Experience on similar work (firm and staff assigned).
 - b. References provided from other customers for similar work.
 - c. Verification of applicable licenses and/or certificates.
 - d. Performance standards regarding goods or equipment sought or utilized.
 - e. Health and safety policies and staff training.
 - f. Availability of applicable insurance.
 - g. Financial capability.
 - h. Current or anticipated work load.
- (3) Once the RFQs are received from the applicable vendors, they shall be reviewed by director of finance/department

head and shall be ranked in accordance with desirability. Either the department head or the director of finance may utilize any reliable source of information available to determine qualifications and shall not be limited to the information submitted by the vendor. A list of pre-qualified vendors shall be developed from those deemed by the city, in its sole discretion, to be most qualified.

- (4) If the materials provided by any vendor in accordance with a city's RFQs are incomplete, the city reserves the right to request additional information and to delay opening any associated quotations or cost proposals. Notwithstanding, the city reserves the right to reject any vendor response to a city RFQ in whole should it deem that a delay in pursuing the award of a contract while additional information is sought would otherwise be undesirable.

(Ord. No. 446, §§ VI, VII, 9-10-03; Ord. No. 581, § 8, 10-28-2020)

Sec. 2-338. Preferred supplier list.

(a) To the extent practicable, each year the director of finance shall solicit pricing from various suppliers for the aggregate purchases of gas, oil, salt, sand, cold patch, asphalt, gravel, crushed stone, office supplies, cleaning supplies, sundries, food, chemicals, medicines and other various supplies. The director of finance, in consultation with the department heads, shall determine which supplier will provide the best quality of product at the best possible prices. The director of finance may combine purchasing objectives with other public entities in accordance with subsection 2-339(b) below.

(b) Any vendor selected shall be placed on a preferred supplier list. This list shall be distributed to the department heads as developed or amended. The preferred supplier list shall be updated, prepared, and circulated on or about July 1st of each year and on such later dates as changes may develop. Department heads shall direct all purchases covered by the list to the supplier providing the product specified in the preferred supplier list. Where the purchase of supplies or materials involves numerous products from a single supplier where the

quantity of items sought would be impracticable to reduce to an RFP, the director of finance is authorized to add suppliers to the preferred supplier list without advertising or obtaining three quotations as required in subsections 2-336(c), (d) and (e) above. Notwithstanding, the director of finance must use due diligence before adding a supplier to the list to ensure competitive quality and pricing. The director of finance may use State of New Hampshire's state bid list of specified vendors and prices as circumstances warrant.

(c) If the department head determines that the specific product in question can be obtained at a significantly lower cost from a vendor not specified on the preferred supplier list, such information shall be communicated to the director of finance. The director of finance shall have the authority to permit purchases outside of the preferred supplier list when it is deemed appropriate. Similarly, where there are anticipated reductions in available quantities or quality, a substitute or backup vendor may be used in accordance with subsection 2-339(a) below.

(Ord. No. 446, § VIII, 9-10-03)

Sec. 2-339. Miscellaneous purchasing policies.

(a) *Temporary or anticipated reductions in quality or availability.* Where a department head is aware that there will be a temporary or anticipated reduction in quality or availability of any products purchased on behalf of the City of Claremont, the department head shall have the authority to either solicit new bids as otherwise set forth herein or to award temporary purchases to a back-up or substitute vendor. The use of such a back-up or substitute vendor shall only be undertaken when it is determined that the agreed price no longer is supported by the quality or availability of the product sought. This policy shall apply particularly to the purchase of sand, gravel, crushed stone, salt, asphalt, wastewater treatment products, chemicals, cleaning agents, etc.

(b) *Policy for cooperative purchasing.* The City of Claremont may participate with other governmental agencies or public authorities in the cooperative acquisition ventures when it is in

the best interests of the taxpayers to do so. These purchases may be coordinated by other governmental agencies and thus would be exempt from the purchasing policies of the city. When coordinated by the city, the city shall utilize, to the best degree practicable, the policy set forth herein. During the course of any cooperative purchasing endeavor, the city manager shall have the authority to waive any provision of this policy should he/she conclude that following the policy would otherwise undermine the primary objective of cooperative purchasing which is to get the best overall price and service through the use of aggregate purchasing power.

(c) *Policy for compliance with purchasing policies.* All employees and department heads acting in accordance with the provisions of the Claremont purchasing policies and procedures shall carry out such activities in accordance with the Claremont Code of Ethics. Any employee found to violate the provisions of the Claremont purchasing policies and procedures or the Claremont Code of Ethics may be subject to appropriate disciplinary measures up to and including termination. The city, the public, and the business community must have confidence in the integrity of the purchasing practices of the city.

(d) *Mistakes or adjustments in the bidding process.*

- (1) On occasion, it may become apparent that those responding to the request for proposals did not understand or submit proposals that address the requirements of the city. Further, circumstances may develop where, through the bidding process, there are changes in specification that can save the city significant amounts of funds. Under such circumstances, the city reserves the right to reject all proposals or bids and re-advertise and/or modify the request for proposal as is necessary.
- (2) Occasionally proposals submitted by vendors may provide more advantageous pricing on a certain distinct phase, segment, element, or trade-in. The city reserves the right to offer multiple vendors distinct phases, segments, elements or trade ins as would be in the best interests of the city. Any such splitting of a proposal is subject to the approval of the vendors involved. Failure

of the lowest bidder to agree to the proposal splitting may result in the city looking to the next most advantageous bidder to determine if proposal splitting is agreeable. Ultimately, award of the contract should be driven by the best overall value for the city. Notwithstanding, the city is under no obligation to split such proposals under circumstances where it believes that, in its sole discretion, dealing with one (1) single vendor will be to the advantage of the city.

(e) *Preparation and specification of requests for proposals*
Unless otherwise required by law, all solicitations shall be in the form of Request for proposals (RFP) and the award of any resultant contract shall conform to the policies and objectives set forth herein. Every effort should be taken to draft any RFP in a manner that will yield the largest possible vendor or supplier interest. Where practicable, specifications for equipment, services, or supplies should be described generally by quantity, objective, fit, function, size, weight, compatibility requirements, mode of operation, power, color, and intended use or purpose. Notwithstanding, a specific model, make or type of equipment or supply may be specified when it is determined that due to dependability, quality, durability, trade in value, compatibility, parts availability, repair history, or familiarity, that securing a specific make, model or type is in the best interest of the city.

(f) *Waiver/deviations from purchasing policies.*

- (1) It is acknowledged that certain state and federally subsidized projects specify that certain purchasing procedures be followed which may deviate from the policies set forth herein. To the degree such funding is conditioned upon purchasing policies that differ from those set forth herein, the city shall, by virtue of accepting any such funding, be deemed to have modified its purchasing policies to conform with such state or federal purchasing requirements.
- (2) Consistent with the city manager's fiduciary duty to prudently manage the fiscal affairs of the city, the city manager is hereby empowered to waive any condition of

these purchasing policies when he/she determines, in his/her sole discretion, that a waiver of certain requirements that, in all likelihood, will yield a more satisfactory result for the city. Notwithstanding the city manager shall waive only such requirements to the extent the resultant purchasing practice does not violate the purchasing objectives and statements of intent set forth in subsection 2-335 above.

(g) *Public works construction projects.* All public works construction projects shall be handled on a case-by-case basis with ample consideration to the extent of professional knowledge and expertise required to complete the project. In most cases where the level of expertise required to complete the project is generally possessed by many qualified contractors, pre-qualification may be waived. Further, when such project does not require a high level of expertise or unique equipment or training, generally the contract will be awarded to a reasonable, reliable, and trustworthy bidder with the lowest equalized cost proposal. Notwithstanding, given the nature of such project and the potential for disruption of roadways, city services, and the general inconveniences to the traveling public and effected businesses, the city reserves the right to consider the anticipated timeframe for the completion of the contract in making any award. A premium may be added to any proposal that significantly reduces the overall impact to the public under circumstances where the perceived benefit outweighs the added cost. The city also reserves the right to award the contract on the basis that the city may participate in providing services or materials such as construction oversight, engineering, design, traffic control, signal repair and/or control, materials, drainage or other goods or services in a manner that provides either cost reductions or otherwise deferred expense.

(Ord. No. 446, §§ IX—XV, 9-10-03)

Sec. 2-340. Disposal of city-owned personal property.

Whenever any personal property owned by the city is no longer needed for corporate or public purposes, as determined by the city manager upon the advice of the director of the applicable city department, the personal property may be offered for sale or

trade. Sale or trade shall be made in a manner similar to the manner in which the personal property was acquired or may be sold by live or Internet auction or by participation in the New Hampshire surplus property auction. The city manager or the finance director may establish a minimum bid or sale price for any item with a residual value of five thousand dollars (\$5,000.00) or more.

Notwithstanding the above, any item(s) of personal property, either individually or related, and including broken and non-functional items, with an individual value under one hundred dollars (\$100.00), may be disposed of in a manner approved by the city manager. This may include trash, recycling, salvage, auction or competitive bid.

(Ord. No. 452, § 1, 9-8-04; Ord. No. 537, § 1, 8-13-2014)

Secs. 2-341—2-355. Reserved.

DIVISION 13. BUDGET PROCEDURE*

Sec. 2-356. Transmission of estimated budget.

No later than sixty (60) days prior to the start of the ensuing fiscal year, the city manager shall transmit to the council his budget for the ensuing fiscal year setting forth his financial program for such year and having the character and scope hereinafter set forth. The budget shall consist of three (3) parts, the nature and contents of which shall be as follows:

- (1) Letter of transmittal, containing a statement of the general financial condition of the city, including any unusual expenditures, revenues, and items worthy of direct comment.
- (2) Detailed expenditure estimates:
 - a. Departmental expenditures;
 - b. Other expenditures.

***Charter references**—Fiscal year, § 36; budget procedure, § 40.

Cross reference—Division of finance, § 2-186.

- (3) Summary of the financial condition of the city:
 - a. Summary of estimated revenues by fund or department and sources;
 - b. Estimated cash balance at end of present fiscal year;
 - c. Program relating to the city debt;
 - d. Combined balance sheets for all departments;
 - e. Estimate of tax rates, levies, and collections;
 - f. Any other information or data he may deem necessary.

(Ord. No. 262, § 24.1, 1-11-89; Ord. No. 445, 9-10-03)

Sec. 2-357. Estimate of departmental expenditures.

No later than ninety (90) days prior to the start of the ensuing fiscal year, all departments of the city shall submit an itemized estimate of expenditures for the next fiscal year for the department or activity. Such estimates shall take a form prescribed by the city manager and finance director and not incompatible with the form for the reports contained in the budget letter of transmittal.

(Ord. No. 262, § 24.2, 1-11-89; Ord. No. 445, 9-10-03)

Sec. 2-358. Estimate of income.

No later than sixty (60) days prior to the start of the ensuing fiscal year, the finance director shall prepare an estimate of the total income of the city for the next fiscal year, in which the several items of income shall be listed and classified according to source or character, departments or establishments producing such funds and brought into comparison with the income actually received during the last completed fiscal year and the estimated income to be received during the year in progress.

(Ord. No. 262, § 24.3, 1-11-89; Ord. No. 445, 9-10-03)

Sec. 2-359. Submission.

No later than sixty (60) days prior to the start of the ensuing fiscal year, the manager shall formulate and submit to the

council the budget provided for in this division. In doing so he shall give weight to the estimates of income as prepared for him by the finance director and to the estimates of expenditure requirements as submitted by the departments, but the proposals contained in the budget shall represent his judgment and recommendations with respect to the provisions to be made for meeting the revenue and expenditure needs of the city for the fiscal year.

(Ord. No. 262, § 24.4, 1-11-89; Ord. No. 445, 9-10-03)

Sec. 2-360. Fiscal year.

(a) The fiscal year of the city shall commence on July 1 and end on June 30 of the following year. This fiscal year shall be used for purposes of making appropriations and for financial reporting and shall be uniformly adopted by all departments of the city.

(b) The city adopts the system for the semi-annual collection and billing of taxes provided for by RSA 76:15-a.

(Ord. No. 262, § 24.5, 1-11-89; Ord. No. 445, 9-10-03; Ord. No. 529, § 1, 9-12-2012; Ord. No. 613, § 1, 9-27-2023)

Secs. 2-361—2-375. Reserved.

ARTICLE IV. FEES*

Sec. 2-376. Authority to revise fees.

(a) The city manager shall have the authority to revise the fee schedule of the city, subject to the following:

- (1) The fees shall, as closely as possible, cover the actual costs to the city of processing the application, issuing the permit or license, inspecting the activity requested or the cost of the service provided.

*Cross reference—Division of finance, § 2-186.

- (2) All revisions proposed by the city manager shall be presented to the city council, by the city manager, and the city council shall vote to accept, reject or revise the proposed fees following a public hearing.
- (3) Each revised fee schedule shall show the date it became effective and a copy shall be attached to the file copy of the ordinance and will be on file in the city clerk's office.
- (b) The city manager shall not have the authority to revise the sewerage rates, water rates or the cemetery fees.
(Ord. No. 273, §§ 1, 3, 4-9-87; Ord. No. 308, § 1, 9-13-89)

Secs. 2-377—2-380. Reserved.

ARTICLE V. RESERVED*

***Editor's note**—Ord. No. 582, § 1, adopted May 12, 2021, repealed Art. V, §§ 2-381—2-405, which pertained to the Merit System and derived from Ord. No. 472, §§ 1, 3, adopted June 14, 2006; Ord. No. 473, §§ 1—3, adopted June 14, 2006; Ord. No. 530, § 1, adopted Feb. 13, 2013; Ord. No. 536, § 1, adopted May 14, 2014; Ord. No. 555, § 1, adopted June 14, 2017; and Ord. No. 569, § 2, adopted Oct. 9, 2019.